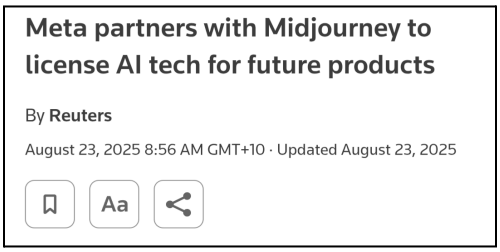
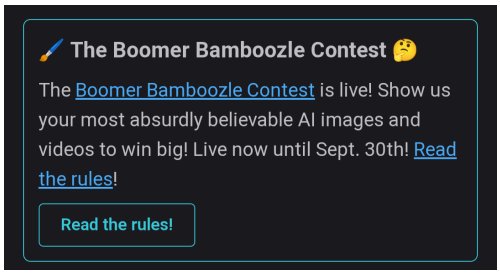
I urge the Committee not just review the past, but consider emerging technology and how it may affect the next election. AI and social media both have the capacity to amplify misinformation, exploiting concern with ongoing crises for illiberal ends. The Committee must therefore make misconduct "high risk, low reward" - empowering agencies to move quickly against misinformation, and allow the public to recall 'cheating' candidates. Please also consider constructive megatrends such as international electorates and lower voting ages.

I. Key focus: stronger, adaptable protections for democratic processes

The considerations of the standing committee are specific examples of electoral misconduct with the aim of using misinformation, intimidation or other extrajudicial techniques to secure an electoral result. These attempts flourish where there is limited sanction for abuse, and the strong reward of influencing a candidate to win. The danger is not just replication, but also new techniques. Solutions must be adaptable to a range of 'attacks''.

With AI, new and magnified forms of misinformation are likely to accelerate. Experts predict within 2 years (i.e. before the next election) we will see widespread use of AI, including 'bad actors', such as deepfake videos, seriously eroding public trust, even if specific instances are debunked.





Left: Midjourney and CivitAI are AI image generation software that can produce realistic images and videos of real people (although against their Terms of Reference). Meta has already been embroiled in electoral misconduct via Cambridge Analytica. Right: CivitAI is currently running a 'fun' competition inviting users to produce fake content that would be credible to 'Boomers'.

The Joint Standing committee should therefore ask itself *"how can we discourage people trying to 'game' the electoral process to subvert the democratic will"*, not just ban specific practices from the past.

II. Key Reform Areas

Strengthen protections for democratic processes. Empower the Australian Electoral Commission (AEC) to take immediate and active steps during elections to counter misinformation or poor conduct, such as the power to

regulate behavior within 100 meters of a polling location and issue immediate take down notices for online content during election periods.

Consider an independent body to address false political advertising and counter misinformation, including AI-generated content. This body could be granted its own channels for real-time public announcements, for example, warning people that a given sign was not authorized by the AEC or that police are investigating an attempt at electoral interference. The High Court, acting as the Court of Disputed Returns, should also possess broader authority to declare improper behavior by individuals or groups, even in cases where voiding an election would be deemed too drastic. This was argued, for example, in 2019 in relation to the "purple placards" scandal.

Finally, following a finding of misconduct, recall elections should be permitted if an electorate so petitions, expanding on the UK Recall Act 2015, which allows limited recall by petition, for members convicted of an offense or suspended from the House.

III. Current Authorisation Framework

The current authorisation framework is demonstrably outdated given the evolution of social media and AI. Campaigns commence well in advance of official election cycles, employing methods that are more opaque than authorisation frameworks address, like push posting on social media and private group posts. Social media's amplifying effect can create a synthetic worldview that can overwhelm real-world experiences. Given Australia has taken the step of regulating social media for its impact on minors, analysis of its corrosive impact on democracy is also warranted. Authorisation make all social media and AI-generated content publicly searchable. This should extend to material designed to sway public opinion within private groups. A political advertisement served to a WhatsApp group of a sports club is no less problematic than in a broadsheet.

IV. Composition of the Parliament

Several key areas warrant attention. Firstly, the current electoral system does not recognise Australians aged 16-18. There were over 580,000 Australians in this age group in 2021 who are deemed capable of other adult responsibilities, such as crime culpability, driving, and giving sexual consent, yet lack voting rights. Expanding the voting cohort to include younger, politically aware voters also helps balance an aging population.

Secondly, Australians living overseas are significantly underrepresented. Between 600,000 and 1 million Australians reside overseas at any given time, a demographic equivalent to over 5-7 House of Representatives seats, yet they are often disenfranchised or inadequately represented by their former electorates (despite no current nexus). Their perspectives on foreign relations, trade and foreign resident support would be valuable. Australia could address this with two to four new senators representing overseas voters, similar to systems implemented in France since the 1980s and Italy since 2000. A more significant reform would involve establishing overseas House of Representatives seats with fixed constituencies, as France has also done since 2010.

Thirdly, a 4 year parliamentary term for effective governance has been extensively analysed by Parliament, and since that time, Queensland has joined other states with 4-year terms. The report notes only 5% of countries have terms less than 4 years, including Australia. Countries held up as models of representative democracy, like Denmark and the Netherlands, also have 4-year terms. International and parliamentary analysis indicate that four-year terms would contribute to better, more strategic decisions.

However, in terms of the the number of representatives, while some Western democracies have large lower houses, such as the US Congress (435 Representatives) or the French Assemblée Nationale (577 députés), countries with stable parliamentary systems, such as New Zealand, Scandinavia, and the Netherlands, generally have smaller houses.

Australia currently has 150 House of Representatives seats for 22.5 million people (~150,000 constituents per representative), a higher ratio than in the Netherlands (120,000 per representative) and Denmark (45,000 per representative). A modest increase in House of Representatives seats, say to 166-172 (the chamber is designed for up to 172), could reduce the imbalance between states and lower the average number of electors per representative to approximately 105,000, which would remain lower than the Netherlands until another 1.5 million electors joined the rolls. Having 166 representatives reflects double the number of Senators if there were 4 senators per Territory and 4 overseas senators.

V. Reforms to Address Threats of Electoral Interference

In addition to electoral measures, Australia should strengthen mechanisms for removing "bad actors" to restore public faith in Parliament in dealing with

misconduct *between* elections. Two mechanisms could be: **no confidence motions in individual Ministers** and **Recall Elections**.

While Australia follows the Westminster tradition of no confidence motions in a Prime Minister or Government as a means of dissolving parliament, the Joint Standing Committee should delve into the model of the Swedish *Riksdag* and their ability to pass no confidence motions in individual Ministers, forcing their resignation. If the committee recommends fixed terms, this would also address the issue in NSW that there is a lack of mechanisms to address government dysfunction within terms.

Sweden appears not to have ever removed a (non-Prime Minister) Minister this way. The lost motions against Ministers have provided a mechanism for airing specific grievances however (e.g., the wrongful dismissal of a senior public servant, a security breach). This could also be used where a specific Minister's mid-term conduct requires formal censure (for example, Alan Tudge, who was ambiguously 'stood down' yet apparently remained Minister for Education in 2021-2), or where foreign influence is imputed.

The United Kingdom has also introduced a Recall Act (2015) where a petition can be used to hold recall elections for candidates found guilty of an offense. A similar power in Australia could also include findings of misconduct in elections. As a safety mechanism, an initial finding of misconduct should be required (to avoid the recall power being used to relitigate a lost election). This could be the Court of Disputed Returns noting a level of misconduct (that does not automatically void an election), or an analogous civil action.